

CERTIFICATE OF SECRETARY
of
COLUMBIA LAKES HOMEOWNERS ASSOCIATION
adopting a
FINING POLICY

STATE OF TEXAS

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COUNTY OF BRAZORIA

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I, Cathy Houston, Secretary of Columbia Lakes

Homeowners Association, a Texas non-profit corporation ("Association"), do hereby certify that

at a meeting of the Board of Directors ("Board") of the Association duly called and held on the

9th day of July, 2019, with at least a quorum of the Board members being

present and remaining throughout, and being duly authorized to transact business, the following

Fining Policy was approved by the Board:

WHEREAS, Article IV of the Association's Articles of Incorporation states that the purposes of the Association include the enforcement of all reservations, restrictions and covenants in the Subdivision under the jurisdiction of the Association;

WHEREAS, Section 6 of Article III(A) titled "Powers and Duties," of the Bylaws, entitled "Enforcement" states the Board has the power to impose reasonable fines on an Owner/occupant for violation of any duty imposed under the Restrictions, Bylaws or any rules and regulations adopted by the Association; and

WHEREAS, the Board believes that instituting a Fining Policy for violations of the restrictive covenants encumbering the Subdivisions under the jurisdiction of the Association is necessary and desirable to assist with achieving one or more purposes of the Association.

NOW, THEREFORE, BE IT RESOLVED the below Fining Policy is hereby adopted as follows:

**COLUMBIA LAKES HOMEOWNERS ASSOCIATION
FINING POLICY**

1. This Fining Policy ("Policy") replaces and supersedes any previous fining policy adopted by the Columbia Lakes Homeowners Association ("Association").
2. All capitalized terms in this Policy have the same meaning ascribed to them in the Restrictions recorded in Volume 1128, Page 911, *et seq.*, as amended, in the Deed Records of Brazoria

County, Texas ("Restrictions") unless otherwise defined in this Policy.

3. Each Owner is responsible for assuring that the Owner and the Owner's tenant(s), occupant(s), guest(s) and invitees comply with the provisions of the Association's Dedicatory Instruments [as that term is defined by Section 209.002(4) of the Texas Property Code or its successor statute] that are applicable to the properties under the jurisdiction of the Association. In the event that an Owner, tenant, occupant, guest or invitee of an Owner violates any of the provisions of the Dedicatory Instruments, the Association's Board of Directors ("Board") shall have the authority to impose a fine as described below upon the Owner and/or occupant of a Lot under the jurisdiction of the Association. "Owner" as used in his Policy shall mean a person or entity who is a record owner of property under the jurisdiction of the Association.
4. The Association will, before a fine is imposed, send the Owner of the Lot the notice required by law, if any. The Board may, in its sole and absolute discretion, also provide the notice required by law, if any, to the occupant(s) of the Lot.
5. If the violation continues from day to day without intervening activity (a "Curable Violation") as determined at the sole and absolute discretion of the Board, the Fine Schedule will be as follows:

\$100.00 per day until corrected

5.1 Curable Violations – By way of example and not in limitation, the following are examples of Curable Violations:

- a. An ongoing parking violation that can be corrected;
- b. A maintenance violation; and
- c. An ongoing noise violation.

6. If the violation consists of single occurrence (an "Uncurable Violation") or separate occurrences (i.e., repeat instances of an Uncurable Violation) as determined at the sole and absolute discretion of the Board, the Fine Schedule will be as follows:

First Violation: \$100.00 per occurrence

Each Additional Similar or Substantially Similar Violation: \$200.00 per occurrence

6.1 Uncurable Violation – A violation that has occurred but is not a continuous action or a condition capable of being remedied by affirmative action. By way of example and not in limitation, the following are examples of Uncurable Violations:

- a. An act constituting a threat to health or safety;
- b. A one-time or non-ongoing parking violation; or
- c. A one-time noise violation that is not ongoing; and
- d. Holding a garage sale or other event prohibited by the Association's Dedicatory Instruments.

7. Notwithstanding any language to the contrary in this Policy, the Fine Schedule for a violation of any term or provision of Article III (Architectural Control) of the Restrictions will be as follows:

\$200.00 per day until corrected

8. The Board is hereby authorized at its sole and absolute discretion to impose a lesser fine or no fine at all for a violation of the Dedicatory Instruments. Any adjustment to the Fine Schedule by the Board shall not be construed as a waiver of the Fine Schedule or the Dedicatory Instruments.
9. This Policy is in addition to any other remedy the Association may have to pursue a violation of the Association's Dedicatory Instruments and in no way limits or estops the Association from pursuing any other remedy to enforce the Association's Dedicatory Instruments.

I hereby certify that I am the Secretary of the Association and that the foregoing Fining Policy was approved as set forth above and now appears in the books and records of the Association.

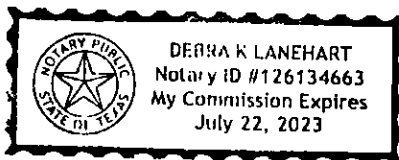
COLUMBIA LAKES HOMEOWNERS ASSOCIATION

By:

Cathy Housenga
As Secretary of the Association

THE STATE OF TEXAS §
 §
COUNTY OF Brazoria §

This instrument was acknowledged before me on the 9th day of September, 2019, by Cathy Housenga, as Secretary of Columbia Lakes Homeowners Association, for the consideration and in the capacities stated herein.



Derra K Lanehart
Notary Public in and for the State of Texas

FILED and RECORDED

Instrument Number: 2019044324

Filing and Recording Date: 09/09/2019 03:18:39 PM Pages: 4 Recording Fee: \$34.00

I hereby certify that this instrument was FILED on the date and time stamped hereon and RECORDED in the OFFICIAL PUBLIC RECORDS of Brazoria County, Texas.



A handwritten signature in black ink, appearing to read "Joyce Hudman".

Joyce Hudman, County Clerk
Brazoria County, Texas

ANY PROVISION CONTAINED IN ANY DOCUMENT WHICH RESTRICTS THE SALE, RENTAL, OR USE OF THE REAL PROPERTY DESCRIBED THEREIN BECAUSE OF RACE OR COLOR IS INVALID UNDER FEDERAL LAW AND IS UNENFORCEABLE.

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cclerk-tammy